

FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board, to Assistant Deputy Commissioner Nancy M. Slater, Department Advocate's Office, October 5, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28551 against Detective Michael Agunzo, Tax Registry No. 962913. The case was conferenced on August 15, 2023, before Deputy Commissioner of Trials Paul Gamble who approved the negotiated penalty of a forfeiture of Fifteen (15) vacation days after DT. Agunzo's's plea of guilty.



Jonathan Darche

Executive Director

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28551
BOOK & PAGE NO. Page 1 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, AGUNZO	FIRST MICHAEL	M.I. J	COMMAND WARRANT SECTION
SHIELD NO. 18509	TAX REGISTRY NO. 962913	SOCIAL SECURITY NO.	DATE APPOINTED 01/04/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Michael AGUNZO, on or about January 27, 2022, at approximately 0810, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO AGUNZO entered § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 15.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Michael AGUNZO, on or about January 27, 2022, at approximately 0810, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO AGUNZO searched § 87(2)(b) on January 27, 2022 without sufficient legal authority.	PLEADED GUILTY	
3 . Police Officer Michael AGUNZO, on or about April 3, 2022, at approximately 0810, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO AGUNZO	PLEADED GUILTY	

DC Brubaker
FIRST DEPUTY COMMISSIONER

11/14/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

11/21/23
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28551
BOOK & PAGE NO. Page 2 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, AGUNZO	FIRST MICHAEL	M.I. J	COMMAND WARRANT SECTION
SHIELD NO. 18509	TAX REGISTRY NO. 962913	SOCIAL SECURITY NO.	DATE APPOINTED 01/04/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
entered § 87(2)(b) without sufficient legal authority.		
4 . Police Officer Michael AGUNZO, on or about April 3, 2022, at approximately 0810, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO AGUNZO searched § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	
5 . Police Officer Michael AGUNZO, on or about July 11, 2022, at approximately 0810, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO AGUNZO entered § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	
6 . Police Officer Michael AGUNZO, on or about August 12, 2022, at approximately 0810, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO AGUNZO	PLEADED GUILTY	

DC Brubins
FIRST DEPUTY COMMISSIONER

11/14/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

11/21/23
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28551
BOOK & PAGE NO. Page 4 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, AGUNZO	FIRST MICHAEL	M.I. J	COMMAND WARRANT SECTION
SHIELD NO. 18509	TAX REGISTRY NO. 962913	SOCIAL SECURITY NO.	DATE APPOINTED 01/04/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
searched § 87(2)(b) without sufficient legal authority. 10 . Police Officer Michael AGUNZO, on or about September 20, 2022, at approximately 0810, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO AGUNZO entered § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	
11 . Police Officer Michael AGUNZO, on or about September 20, 2022, at approximately 0810, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO AGUNZO searched § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	

DC Brubino
FIRST DEPUTY COMMISSIONER

11/14/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

11/21/23
DATE

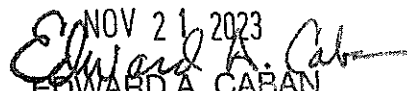
THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner November 14, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28551 against Detective Michael Agunzo, Tax #962913, with the recommendation that Detective Agunzo forfeit fifteen (15) vacation days for his misconduct. Assistant Deputy Commissioner, Trials, Paul M. Gamble reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**

TIK/pk


Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

NOV 21 2023

EDWARD A. CABAN
POLICE COMMISSIONER